

Smt. Santosh Kumari v. Sri Avaneesh Pratap Singh

Allahabad High Court · Single Judge · 11 July 2019 · Contempt Application (Civil) No. 4103 of 2019 · **Prima facie contempt; three weeks more to decide pending clause 6.5 objections.**

HEADNOTE

A consumer's clause 6.5 objection to a distribution-licensee demand remained undecided after a writ had quashed a subsequent demand and directed a time-bound decision. On civil contempt, the High Court found a prima facie case of disobedience, granted the Executive Engineer three further weeks to comply, and disposed of the application with liberty to revive if the writ directions were not obeyed. The electricity dispute was left for decision under clause 6.5 in accordance with law.

FACTUAL SUMMARY

Smt. Santosh Kumari challenged a Madhyanchal Vidyut Vitran Nigam demand of Rs.3,79,636/- at Budaun. On 30 October 2018 the High Court directed the Executive Engineer to decide her clause 6.5 objection. She objected on 28 November 2018, yet a fresh demand of 12/15 December 2018 issued without a decision. Writ Petition No. 1950 of 2019 quashed that demand on 31 January 2019 and allowed three months to decide the objections. She then filed this civil contempt for alleged wilful non-compliance.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

clause-6.5-objection

HOLDING

Where a writ has quashed a subsequent demand and directed the Executive Engineer to decide a pending Electricity Supply Code, 2005 clause 6.5 objection (styled as Section 6.5 in the earlier writ) within a fixed time, continued non-decision is prima facie civil contempt. The Court granted three further weeks to comply and disposed of the contempt with liberty to file afresh if the writ directions remained unobeyed, leaving the objections to be considered and decided in accordance with law. ¶ 1

FLAG Earlier writ refers to clause 6.5 as 'Section 6.5'.

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE RS.3,79,636/- DEMAND AND OF THE CLAUSE 6.5 OBJECTION

Left to the Executive Engineer under the writ of 31 January 2019. ¶ 1

NOT DECIDED — PUNISHMENT FOR CONTEMPT

Only a prima facie case; no finding of proved wilful disobedience and no sentence under section 12 of the Contempt of Courts Act, 1971. ¶ 1